



POLICE DEPARTMENT

November 12, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202404974 (Incident Date: May 18, 2024) regarding Police Officer Bryan Kim, Tax No. 973110 (PODS Case No. C-035366)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202404974, pertaining to Police Officer Bryan Kim. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer Kim responded to an officer's call for assistance. Other members of the service had observed an individual urinating in public and conducted a pedestrian stop of that individual. The individual refused to provide identification and actively resisted officers' attempt at placing him under arrest. Officer Kim utilized hand strikes and deployed his conducted electrical weapon (CEW) against the resisting individual in his efforts to take the individual into custody. Additionally, Officer Kim told the individual that he would deploy the taser again if the individual continued to resist. After reviewing the evidence, and taking into consideration the totality of the circumstances, the Police Commissioner finds that Officer Kim acted within the law and Department policy. His uses of force, and threat of force, to overcome active resistance were within guidelines.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no discipline for the alleged misconduct.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

November 13, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v PO Bryan Kim Case No. 202404974 PODS No. C-05366)

Dear Commissioner:

I am writing in response to the letter from Deputy Chief Michael Baker, dated November 12, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Kim despite the fact that charges have already been served on PO Kim. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against PO Kim would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and impose no discipline.

The CCRB respectfully disagrees with your assessment. BWC footage established that § 87(2)(b) did not abide by the officers’ repeated commands to give them his hands and that he, per PG Procedure 221-02, actively resisted being handcuffed. Thus, the officers were permitted to use appropriate force to handcuff § 87(2)(b). However, PG Procedure 221-01 requires that such force must be reasonable and consistent with safety. In this case, the force used by PO Kim was not reasonable nor consistent with safety.

PO Ashfaq acknowledged punching § 87(2)(b) in the back of the head, and PO Vetere and PO Kim testified that they used hand strikes (with PO Kim using a closed fist) on § 87(2)(b) upper back, with all three officers doing so to gain § 87(2)(b) compliance and to get his arms. BWC footage showed that PO Vetere, PO Kim, and PO Ashfaq all repeatedly punched the back of § 87(2)(b) head, as he lay on his stomach, with his face near the ground. Furthermore, the officers were required to account for the fact that § 87(2)(b) was the only subject being taken into custody at that moment, compared to at least six officers physically trying to handcuff him, and he did not pose a flight risk, especially since he was on his stomach, with his face on the ground. BWC footage corroborated § 87(2)(b) statement that the officers had his head against the ground, which he stated caused injuries to his face. BWC footage and § 87(2)(b) arrest photos showed the abrasions on his forehead, and medical records documented his complaint of head pain and noted that his abrasions were treated at the hospital.



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Dr. MOHAMMAD KHALID
INTERIM CHAIR

§ 87(2)(b) level of physical resistance did not pose such a threat to the officers (especially since PO Kim hovered over § 87(2)(b) while the latter was not moving) that it justified PO Vetere, PO Kim, and PO Ashfaq dangerously punching the back of § 87(2)(b) head.

The officers failed to use force that was reasonable and did not minimize the possibility of injury. BWC footage showed that an officer yelled, “taser” and “drive,” without indicating to, or warning, § 87(2)(b) that a taser would be used on him or even explaining what “drive” meant. PO Kim stated that he made the decision to use a taser and did not give a verbal warning. In accordance with PG Procedures 221-02 and 211-08, PO Kim should have advised § 87(2)(b) that he would use a taser/drive stun to handcuff the latter *prior* to doing so, especially since § 87(2)(b) could not see what was going on behind him (where PO Kim was positioned). Such a verbal warning was possible to give to § 87(2)(b) similar to how another officer shouted the words “taser” and “drive” and how they gave him verbal instructions to give them his hands.

Furthermore, per PG Procedure 211-08, there was already a separation between § 87(2)(b) and the officers (who outnumbered him at least six-to-one), and thus, a drive stun was unnecessary. PO Kim attested that once he stopped using the drive stun, § 87(2)(b) turned over, with § 87(2)(b) chest facing him. On the contrary, BWC footage and the Taser Sheet showed that after PO Kim drive stunned § 87(2)(b) back, the latter turned over, and PO Kim continued to drive-stun § 87(2)(b) but now on his chest, for three seconds. Per PG Procedure 221-08, PO Kim should have avoided discharging the drive stun on § 87(2)(b) chest, as it was very possible for PO Kim to move the taser off his chest. Furthermore, only after PO Kim drive stuns § 87(2)(b) does the latter turn his body around and flail his arms contrary to officer’s testimony.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests that the disciplinary procedure against PO Kim be allowed to continue.

Respectfully submitted,

Andre D. Applewhite
p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 14, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202404974 (Incident Date: May 18, 2024) regarding Police Officer Bryan Kim, Tax No. 973110 (PODS Case No. C-035366)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 13, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Bryan Kim, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Officer Kim for the reasons expressed in my November 12, 2025, letter. The force used by Officer Kim was reasonable under the circumstances to overcome the individual's active resistance.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Kim receive no disciplinary action for the alleged misconduct.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office